



DECISION

Complaint No. : POS/863/HYD/2024

Name and address of the complainant : Mr. Abdul Rasheed s/o Abdul Karim
C/o Abdul Wahid, R/o House No.19,
Sindh University Old campus Ghari Khata, Hyderabad.

Name of the Agency Complained against : Deputy Commissioner, Hyderabad

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by :

Subject : Muhammad Naseer Jamali, Advisor-N

**COMPLAINT AGAINST MUKHTIARKAR TALUKA
HYDERABAD ALLEGING TEMPERING IN THE RECORD
OF RIGHTS IN RESPECT OF SURVEY NOS: 256 & 257, DEH
DHABCHRAPUR, TALUKA HYDERABAD**

Complaint

Mr. Abdul Rasheed filed a complaint dated 07.11.2024 wherein he stated that the land bearing Survey No: 256 & 257 at Deh Dhabchrapur, Taluka Hyderabad was transferred by his father Mr. Abdul Karim in favour of Abdul Raheem (his brother) through Power of Attorney in the year 1991. Thereafter, Abdul Reheem had gone missing since 26.04.2016 and such N.C was registered at Police Station Makki Shah. After that, the foti-khata of late Abdul Reheem was changed in favour of his brother Abdul Salman. He approached Deputy Commissioner Hyderabad for cancellation of foti-khata but to no avail. Being aggrieved he solicited intervention of this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 27.11.2024 to the Deputy Commissioner, Hyderabad for report. In response, Mukhtiarkar (Revenue), Taluka Hyderabad submitted report vide letter dated 15.04.2025 with regard to the status of land, Survey Nos. 256 (measuring 03-35 acres) and 257/1-2 measuring (05-00 acres) was Central Government land, which was allotted to the claimants (i) Shafi-ud-Din s/o Shahuddin and (ii) Shabir Khan s/o Waris Khan vide Entry Nos. 12 and 13 of V.F. VII-B of Deh Dhabchapur, Tapo Tando Fazal, Taluka Hyderabad. Thereafter, both claimants sold the entire land through Power of Attorney to Abdul Karim, who subsequently transferred the same to Abdul Raheem on the basis of an oral statement vide Entry No. 17 dated 17.12.1991 of V.F. VII-B. Subsequently, the Foti Khata of Abdul Raheem was changed in favour

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of (i) Abdul Karim and (ii) Mst. Bismillah Begum w/o Abdul Karim vide Entry No. 41 dated 30.11.2024. Thereafter, the Foti Khata was further changed in favour of Abdul Saleem s/o Abdul Karim Qureshi, Abdul Rasheed s/o Abdul Karim, Mst. Yasmeen w/o Abdul Saleem, Mst. Fareeda d/o Abdul Karim, Mst. Reehana d/o Abdul Karim, and Mst. Farzana d/o Abdul Karim (Mst. Bismillah Begum being the mother) vide Entry No. 193 dated 13.12.2024. As per the said entry, Mst. Bismillah Begum and Mst. Fareeda sold their respective shares measuring 4-13 acres out of Survey Nos. 256 and 257 and 1-04 acres out of Survey No. 268 to the vendee Sheeraz through registered Sale Deed.

4. He further stated that if the complainant is aggrieved by the khata badal entries and sale deed, he may file Revenue Appeal U/S 161 of Sindh Land Revenue Act 1967 for cancellation of entries and file a civil suit seeking decree against the subject entries in the record as per section 53 of Sindh Land Revenue Act.

5. The report of the agency was sent to the complainant for rejoinder vide letter dated 28.04.2025 but he did not respond despite issuing reminders.

Decision

6. In view of the above and in exercise of powers vested in me under section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date), the complaint is disposed of on account of non-prosecution.

Given under my hand and seal of the office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)

Sitara-e-Imtiaz, PAS

Ombudsman Sindh

Karachi, dated 16th January, 2026